

The Bengal Indigo Contracts Regulation, 1830

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State of Bihar - Act

The Bengal Indigo Contracts Regulation, 1830

BIHAR

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The Bengal Indigo Contracts Regulation, 1830

Act 5 of 1830

Published on 9 June 1830

Commenced on 9 June 1830

[This is the version of this document from 9 June 1830.]

[Note: The original publication document is not available and this content could not be verified.]

The Bengal Indigo Contracts Regulation, 1830

Bengal Regulation 5 of 1830

[Dated 9th June, 1830]

A Regulation [* * *]

[Words in the title and preamble repealed by Act 12 of 1891.]

relating to the cultivation and delivery of indigo-plant

1.

Preamble.

- [* *] [* * *]

[Words in the title and preamble repealed by Act 12 of 1891.]

Whereas it is desirable in certain cases to afford persons who may be unwilling to renew their contracts for the

cultivation of indigo the means of obtaining by summary process, a release from their engagements;
the following Rules have been enacted, to be in force from the date of their promulgation throughout the territories
subject to the Presidency of [Fort William.]

[This includes the present State of Bihar.]

2.

to 4.[* * * * *]

[Sections 2, 3 and 4 repealed by Act 8 of 1868, Act 16 of 1835 and Act 3 of 1857, respectively.]

5.

Procedure by persons wishing to be released from their engagements.

- First.-Any person who, having received advances under a written agreement for the cultivation of indigo, shall be desirous, on the expiration of the period of his contract, to settle his account shall be at liberty, in the event of the proprietor of the factory, or the person acting in his behalf, refusing to settle the same, to present a petition to the Zila Court;

and the Judge, after a summary inquiry, in the presence of the parties or their authorized agents, into the merits of the case, shall, on proof of the expiration of the contract, and of there being no balance due from the petitioner, or if the petitioner shall deposit in Court the amount of any balance that may be adjudged to be due from him, grant the said petitioner a release from his engagement, and shall pay over the amount of any balance that may be deposited by him to the proprietor, or to the person acting in his behalf.

Procedure if proprietor objects to receive balance.-Second.-If the proprietor or person aforesaid shall refuse to receive the balance awarded to him by the summary process above provided, the Judge shall return the amount to the petitioner, leaving the defendant to seek his remedy by a regular suit.

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